

26SMCV00100 26SMCV00100

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-30

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CM%2C07%2F30%2F2026

Source SHA-256: e715cf696cf9c23f3664d0037a98c48dbbf3ec945fb5c9c6a604930ba65ab2ea

Case Number: 26SMCV00100 Hearing Date: July 30, 2026 Dept: M

CASE NAME: Hernandez, v. Southern

California Disposal, Co., et al.

CASE NO.: 26SMCV00100

MOTION: Motion

to File Complaint-in-Intervention

HEARING DATE: 7/30/2026

Legal

Standard

Pursuant to Code of Civil Procedure

("CCP") section 387, a nonparty ("intervenor") may become a party to an action or proceeding between other persons by joining a plaintiff in claiming what is sought by the complaint, uniting with a defendant in resisting the claims of a plaintiff, or demanding anything adverse to both a plaintiff and a defendant.

(CCP §387(b).) "The purpose of allowing intervention is to promote fairness by involving all parties potentially affected by a judgment." (Lindelli v. Town of San Anselmo (2006) 139 Cal.App.4th 1499, 1504.)

CCP section 387 allows intervention

on either a mandatory or permissive basis. "A nonparty has a right... to intervene in a pending action 'if the person seeking intervention claims an interest relating to the property or transaction which is the subject of the action and that person is so situated that the disposition of the action may as

a practical matter impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by existing parties.' " (Hodge v. Kirkpatrick Development, Inc. (2005) 130 Cal.App.4th 540, 547.)

The Court may permit intervention "(1) where the proposed intervenor has a direct interest, (2) intervention will not enlarge the issues in the litigation, and (3) the reasons for the intervention outweigh any opposition by the present parties.' " (Lindelli v. Town of San Anselmo (2006) 139 Cal.App.4th 1499, 1504.) The Court must determine, as a question of fact, whether the petitioner has a direct interest in the matter. (Muller v. Robinson (1959) 174 Cal.App.2d 511, 515.) The burden rests on the one seeking to intervene to show that this is a proper case for intervention. (Id.) "For an interest to be direct and immediate, the interest "must be of such a direct and immediate nature that the moving party will either gain or lose by the direct legal operation and effect of the judgment. A person has a direct interest justifying intervention in litigation where the judgment in the action of itself adds to or detracts from his legal rights without reference to right and duties not involved in the litigation. Conversely, [a]n interest is consequential and thus insufficient for intervention when the action in which intervention is sought does not directly affect it although the results of the action may indirectly benefit or harm its owner." (City and County of San Francisco v. State of California (2005) 128 Cal.App.4th 1030, 1037, quotations and citations omitted.)

The application must also be "timely". (CCP §387.) Whether the motion is timely depends on the date the proposed interveners knew or should have known their interests in the litigation were not being adequately represented. (Ziani Homeowners Association v. Brookfield Ziani LLC (2015) 243 Cal.App.4th 274, 282.)

A nonparty's petition for intervention must include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests. (CCP §387(c).)

If the court grants leave to intervene, the intervenor must separately file the complaint in intervention, answer in intervention, or both, and serve notice of the court's order granting leave to intervene and the pleadings on all parties. (CCP §387(e).)

ANALYSIS

Proposed Intervenor City of Santa

Monica moves for leave to file a Complaint in Intervention. The City attaches a copy of the proposed pleading. (Brown Decl., Ex. A.)

The City shows grounds for mandatory intervention. Plaintiff's action arises from an alleged injury sustained while within the scope of his employment as a maintenance worker for the City. The City provided \$126,217.38 in workers' compensation benefits to Plaintiff stemming from this injury. (Brown Decl. 3.) The City has a direct interest in the subject of Plaintiff's action, and disposition of this action may practically impair or impede the City's interest without its participation. The other parties do not adequately represent the City's interest. Additionally, grounds for permissive intervention exist. Intervenor has a direct interest in the amounts recovered by Plaintiff. Intervention will not enlarge the issues in the litigation, since the City only seeks subrogation recovery. The City timely brought this motion within 20 days of Plaintiff's filing.

Accordingly, the motion is GRANTED.